

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, August 13, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05165	Esther Delgadillo Lopez vs City of Merced et al.
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Motion for Leave to File Cross- Complaint Against City Of Merced and Rebecca Ann Sweeley

Defendant Arroyo's unopposed motion for leave to file a cross-complaint is GRANTED.

Defendant shall file the proposed cross-complaint within ten (10) days of this court's order.

The Court will sign the order lodged with the court on July 6, 2026.

25CV-01659	Joe Chavez vs General Motors, LLC
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Motion to Stay Proceedings

Plaintiff's motion to stay proceedings is DENIED.

Plaintiff seeks a stay based on the Second District Court of Appeal taking up the novel issue of whether a defendant's election under Code of Civil Procedure section 871.30,

subdivision (a) can retroactively render a previously filed complaint untimely pursuant section 871.21.

That novel issue is not currently before this court. The only pending issue before this court is Defendant's motion to dismiss for discovery violations. This does not create a current risk of inconsistent rulings. Further, the balance of factors does not favor a stay. A stay at this time would not promote judicial economy or accommodate the ends of justice. Accordingly, the motion is denied.

26CV-01777 Jovani Gaytan-Paez vs Razzari CDJR, et al.

Petition to Compel Arbitration, Dismiss Putative Class Claims, And Stay Proceedings

The motion to compel arbitration, dismiss putative class claims, and stay proceedings is DENIED. See, *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641.

22CV-04070 Joseph Doe 807 vs Doe 1

Trial Setting Conference

Appearance required.

22CV-04123 Joseph Doe 806 vs Doe 1, et al.

Trial Setting Conference

Appearance required.

22CV-04124 Joseph Doe 802 vs Doe 1

Trial Setting Conference

Appearance required.

22CV-04126 Joseph Doe 804 vs Doe 1, et al.

Trial Setting Conference

Appearance required.
